ments. The fact that the authority charging admissions or receiving the proceeds thereof is the United States or an agency thereof, or a State or Territory or political subdivision thereof, such as a county, city, town, or other municipality, does not make such admissions exempt, in the absence of specific statutory provision. The Code specifically provides that the taxes on admission shall be paid by the person paying for admission. It is not, therefore, a tax on the person or authority selling the admissions or receiving the proceeds thereof.

§ 101.16 *Application for exemption.* (a) A determination concerning the applicability of an exemption provided by section 1701 may be obtained by the timely filing of a properly executed application for exemption on Form 755. This form may be procured from any director of internal revenue. The application shall show the place and the occasion with respect to which exemption is requested. It shall be executed by an officer or duly authorized agent of the organization in control of the admissions or excess charges or, in case of control by an individual, the application must be executed by him or his duly authorized agent. Where the proceeds of the admissions or excess charges will inure to the benefit of an organization not in control of such admissions or excess charges, the beneficiary shall join in executing the application for exemption.

(b) The application shall be filed with the director of internal revenue for the district in which is located the place to which the admissions will be sold. It shall be filed as early as possible so that the organization may be advised in ample time prior to the date of the event of the action taken by the director. The application shall be accompanied by the necessary supporting data specified therein, so that action can be taken without the necessity of additional correspondence.

(53 Stat. 467; 26 U. S. C. 3791)

[SEAL] T. COLEMAN ANDREWS,
Commissioner of Internal Revenue.

Approved: April 15, 1953.

M. B. FOLSOM,
Acting Secretary of the Treasury.

[F. R. Doc. 53-3523; Filed, Apr. 21, 1953; 8:51 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 892]

LOUISIANA

REVOKING EXECUTIVE ORDER OF AUGUST 8, 1907

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

The Executive order of August 8, 1907, reserving and setting aside the following-described areas for the use of the Department of Agriculture as a preserve and breeding ground for native birds, to be known as Tern Islands Reservation, now Tern Islands National Wildlife Refuge, is hereby revoked:

All small islets, commonly called mud lumps, in or near the mouths of the Mississippi River located within the area segregated and shown upon a diagram attached to and made a part of the Executive order.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 15, 1953.

[F. R. Doc. 53-3501; Filed, Apr. 21, 1953; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Bureau of Animal Industry

[9 CFR Part 76]

QUARANTINE AND REGULATIONS RESTRICTING INTERSTATE MOVEMENT OF SWINE AND SWINE PRODUCTS BECAUSE OF VESICULAR EXANTHEMA

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given in accordance with section 4 (a) of the Administrative Procedure Act (5 U. S. C. 1003 (a)) that the Secretary of Agriculture, pursuant to the authority vested in him by sections 1 and 3 of the act of March 3, 1905, as amended (21 U. S. C. 123 and 125), sections 1 and 2 of the act of February 2, 1903, as amended (21 U. S. C. 111 and 120), and section 7 of the act of May 29, 1884, as amended (21 U. S. C. 117), is considering amending Subpart B of Part 76, Title 9, Code of Federal Regulations (17 F. R. 10538, as amended), to read as follows:

SUBPART B—VESICULAR EXANTHEMA

§ 76.25 *Definitions.* As used in this subpart, the following terms shall have the meanings set forth in this section.

(a) *Administrator.* The Administrator of the Agricultural Research Administration, United States Department of Agriculture, or any other official of such Administration to whom authority has heretofore been delegated or may hereafter be delegated to act in his stead.

(b) *Bureau.* The Bureau of Animal Industry, Agricultural Research Administration, United States Department of Agriculture.

(c) *Chief of Bureau.* The Chief of the Bureau or any other official of the Bureau to whom authority has heretofore been delegated or may hereafter be delegated to act in his stead.

(d) *Garbage.* Waste consisting in whole or in part of animal waste resulting from handling, preparing, cooking, and consuming of food including the offal from animal carcasses or parts thereof.

(e) *Uncooked garbage.* Garbage that has not been heated throughout to a temperature of at least 212° F. for 30 minutes or heated according to a method specifically approved by the Chief of Bureau.

(f) *Quarantined area.* An area specified in § 76.29 as an area quarantined because of vesicular exanthema.

(g) *State.* State, Territory, or the District of Columbia.

(h) *Interstate.* From one State into or through any other State.

(i) *Person.* Any person, company or corporation.

(j) *Moved or movement.* As applied to swine, the term "moved" or "movement" means transported, shipped, delivered or received for transportation, driven on foot or caused to be driven on foot, by any person, and as applied to swine products, the term "moved" or "movement" means transported, shipped, or delivered or received for transportation, by any person.

(k) *Public stockyard.* A stockyard where trading in livestock is carried on; where yarding, feeding, and water facilities are provided by the stockyard, transportation, or similar company; and where Federal inspection is maintained for the inspection of livestock for communicable diseases.

(l) *Clean stockyard.* A public stockyard at which Bureau inspection service is maintained and which is found by the Chief of Bureau to be free from the infection of vesicular exanthema.

(m) *Specially processed or special processing.* Subjecting swine products to heat treatment in accordance with the requirements contained in § 76.32.

(n) *Swine product.* Any carcass, part or offal of swine.

(o) *Vesicular exanthema.* The contagious, infectious, and communicable disease of swine commonly known as vesicular exanthema.

§ 76.26 *Notice relating to existence of the contagion of vesicular exanthema and to regulations governing movement of swine and swine products.* (a) Notice is hereby given that the Secretary of Agriculture has reason to believe that the contagion of vesicular exanthema exists within and throughout the United States, and that uncooked garbage is one of the primary media through which such contagion is disseminated. Since June 16, 1952, vesicular exanthema has been diagnosed in 42 States. Almost without exception, each occurrence of such disease has been traced to swine fed on uncooked garbage. Even infection by contact usually can be traced back to swine fed such garbage. Virus-infected meat scraps in uncooked garbage carry the disease into herd after herd at great loss to livestock owners, the packing industry, and the consuming public. The contagion of such disease is extremely virulent and experience with the disease shows that such contagion is disseminated very rapidly.